

and their applications and the containers in which the good are shipped. Buyer agrees to inform and train its employees and customers as to such hazards.

Seller makes no representation or warranty of any kind, express or implied, with regard to the existence or nonexistence of mold or other contaminants on the Goods and Buyer waives any and all claims against Seller in connection therewith.

19. *Taxes.* Unless otherwise agreed by Seller in writing, all prices are exclusive of applicable federal, state, local and foreign sales, use, excise, value added and other taxes. Any and all current or future tax or other governmental charge applicable to the sale, delivery, shipment or storage of the Goods that Seller is required to pay or permitted to collect shall be for Buyer's account and shall be added to the price, and shall not be subject to any reduction.

20. *Waiver.* No waiver of any provision of this Agreement shall be deemed, or shall constitute, a waiver of any other provision, whether or not similar, nor shall any waiver constitute a continuing waiver. No waiver shall be binding unless executed in writing by the party making the waiver.

21. *Severability.* If any portion of the Agreement or its application is construed to be invalid, illegal or unenforceable, then the other portions of the Agreement or its application thereof shall not be affected thereby and shall be given full force and effect without regard to the invalid or unenforceable portions.

22. *General.* Except as provided in Section 16, the rights and obligations of the parties under the Order Confirmation shall be governed by the laws of the State of Oregon, U.S.A. in effect as of the date of the Order Confirmation, including without limitation the provisions of the Oregon Uniform Commercial Code, but without regard to conflicts of law principles. The 1980 United Nations Convention on Contracts for the International Sale of Goods, as amended, shall not apply to the Order Confirmation. If any provision of the Order Confirmation is determined by any court or arbitrator to be unenforceable, the provision shall be modified to reflect the intent of the parties, if possible, such that it will be enforceable, or if not, then deleted, and the balance of the Order Acknowledgment shall be binding upon the parties. Any agreement signed and sent by facsimile or email shall be treated as a binding original.

23. *Notices.* All notices, request, consents, claims, demands, waivers and other communications hereunder (each, a "Notice") shall be in writing and addressed to the parties at the addresses set forth on the face of the Order Confirmation or to such other address that may be designated by the receiving party in writing. All Notices may be delivered by personal delivery, nationally recognized overnight courier (with all fees pre-paid), facsimile (with confirmation of transmission), or U.S. First-Class, certified, or registered mail (in each case, return receipt requested, postage prepaid). Notices may also be delivered via electronic mail at an electronic mail address set forth on the face of the Order Confirmation or otherwise used in the course of business between Buyer and Seller. Except as otherwise provided in this Agreement, a Notice is effective only (a) upon receipt of the receiving party (or within 14 days of transmission if receipt is not affirmatively acknowledged), and (b) if the party giving the Notice has complied with the requirements of this Section.

24. *International Goods.* The following additional terms and conditions apply to any sales of goods manufactured outside of the United States.

a. Changes in Duty and/or Freight Rates. Any changes, after date of the contract, in rate of duty, United States import taxes, or valuations by United States Customs, shall be for the account of Buyer unless otherwise specified. Any change in freight rates between contract date and bill of lading date above and beyond the negotiated price shall be for the account of Buyer.

b. Detention. Goods are sold subject to inspection by USDA, or by any other United States Government Department, Bureau or Agency with jurisdiction over them. If the goods or any part of them are detained by the United States government and not released for entry after reasonable efforts have been made by Seller to remove such detention, it is understood that Seller is not required to make a replacement of the merchandise and that the contract in regard to the detained and unreleased merchandise shall then become void and Seller shall be released of all responsibility and liability except that Seller must either refund the purchase price, if paid, plus freight charges, insurance and other expenses incurred by Buyer in connection with the transaction, or at Seller's discretion provide the same material from another source.